IN THE NATIONAL COMPANY LAW TRIBUNAL: CHANDIGARH
(*through* Hybrid Mode)
COURT-I

Item No. 108

CP(CAA) No. 30/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF:

FIM Holdoco I Ltd. & Anr. …Transferor Companies

With

One World Center Pvt. Ltd. …Transferee Company

Under Section: 230-232, CA 2013, R 11 NCLT 2016

Order delivered on 25.10.2024

CORAM:

SH. UMESH KUMAR SHUKLA
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:
For the Petitioner: Mrs. Munisha Gandhi, Senior Advocate
Ms. Salina Chlana, Advocate
Mr. Vaibhav Sharma, Advocate
For the RD: Mr. Vineet Khattri, Company Prosecutor
For the Income Tax Department: None

File taken up on special mentioning

ORDER

It is stated by Ld. Counsel for the petitioner companies that they had received the copy of the RD report but it is stated by Mr. Vineet Khattri, Company Prosecutor that he is not sure that the copy of the report is filed in the registry or not. Be that as it may, he is directed to check it with the registry or if the report is not filed then the same be filed within two days and a copy of the same is already received by the other side as stated by them. Ld. Counsel for the petitioner companies is directed to file the response, if any, within one week with a copy in advance to the counsel opposite. It is stated by Ld. Counsel for the petitioner that the report of the Income Tax Department

has not been received despite service of notice to the Income Tax Department, Nodal Officer, Aaykar Bhawan, Chandigarh, but the company head offices are in Gurgaon and they are stated to be assessed at Mumbai. Therefore, Ld. Counsel for the petitioner companies is directed to serve fresh notice to the Income Tax Department through the Principal Chief Commissioner, Income Tax Department, Gurgaon through registered post and the copy of the same also be sent to the concerned assessing office at Mumbai within two weeks. Ld. Counsel for the petitioner is directed to file an affidavit of service within one week and if the Income Tax Department is served then reply/response, if any, be filed within next 15 days. In the meantime, Ld. Counsels for the parties are directed to file an affidavit on behalf of the born-by-transferee company if there is any liability of income tax related to. Let the same be done within two weeks. List on 22.11.2024 in the supplementary list.

Sd/-
(UMESH KUMAR SHUKLA)
MEMBER (T)

Sd/-
(HARNAM SINGH THAKUR)
MEMBER (J)

Preeti